

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 08/26/2026

Case #	Case Name	Tentative
01489177	Eisenbeisz – Trust	TENTATIVE RULING Case: Eisenbeisz – Trust 01489177 Calendar No: 1 Date: 08/26/26 MOTION TO DISMISS OR CHANGE VENUE (ROA 34) Respondent Shannon Gallagher ("Respondent") moves to dismiss or change venue of the Petition filed by Petitioners Sheridan Heidemann, Roxanne Norville, and Shayne Gallagher (collectively, "Petitioners"). Venue in a trust proceeding is determined based on the principal place of administration of the subject trust. (Prob. Code § 17005.) "The principal place of administration of the trust is the usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for the administration of the trust." (Prob. Code § 17002.) While Probate Code sections 17005 and 17002 establish the proper venue for trust proceedings, they do not provide a procedural mechanism for obtaining an order to change venue. Thus, pursuant to Probate Code section 1000, the procedure for changing venue in a trust proceeding is governed by Code of Civil Procedure section 396b. To challenge venue, a responding party must file a noticed motion for an order to transfer the matter to the proper court "at the time he or she answers, demurs, or moves to strike, or . . . within the time otherwise allowed to